

25STCV22601 25STCV22601

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-14

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Case Number: 25STCV22601 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION TO DISMISS PLAINTIFF'S COMPLAINT, OR IN THE ALTERNATIVE STAY THE ACTION BASED ON FORUM NON CONVENIENS Dept. 731 8:30 a.m. July 14, 2026

Moving Party: Defendant Taleo Capital, LP

Opposing Party: Plaintiff, Andry Holmes

Notice: OK

1. Background Facts

Plaintiff Andry Holmes sues Defendants Teleo Capital, LP ("Teleo Capital"), Teesnap LLC ("Teesnap"), David Casares, and Does 1 to 50 pursuant to a July 31, 2025, Complaint alleging various Fair Employment and Housing Act, Unfair Competition, and common law claims arising from allegations of Plaintiff's employment with Defendants, which began remotely in California in April 2024 but later required relocation to Nevada in October 2024, where Defendants unlawfully terminated employment in January 2025 following incidents of sexual harassment against Plaintiff that she reported to Defendants.

Before the Court is Defendant Teleo Capital's opposed motion to dismiss or stay this action based on the doctrine of forum non conveniens.

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2. Motion to Dismiss or Stay Based on Forum Non Conveniens

a. Forum Non Conveniens Legal Standard

Code of Civil Procedure section 410.30, subdivision (a) provides that "[w]hen a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." "In applying the traditional forum non conveniens

analysis, the trial court must engage in a two-step process, on which the defendant bears the burden of proof. [Citation.] In the first step, the court must determine whether a suitable alternative forum exists. [Citation.] If the court finds that a suitable alternative forum exists, it must then balance the private interests of the litigants and the interests of the public in retaining the action in California. [Citation.]” (*Animal Film, LLC v. D.E.J. Prods., Inc.* (2011) 193 Cal.App.4th 466, 471, 472 (“*Animal Film*”); see *National Football League v. Fireman’s Fund Ins. Co.* (2013) 216 Cal.App.4th 902, 926 (*National Football League*) [The party seeking a dismissal due to an inconvenient forum bears the burden of proof].)

An action brought by a California resident specifically may not be dismissed on grounds of forum non conveniens except in extraordinary circumstances. (*Century Indemnity Co. v. Bank of America* (1997) 58 Cal.App.4th 408, 411 (*Century Indemnity*)). In those circumstances, a trial court has more discretion to grant a stay because California would retain jurisdiction. (*Id.* at p. 412.)

Courts disagree on what level of deference should be attributed to the plaintiff’s choice of forum where the plaintiff is a resident of another state. Most courts have held that when a plaintiff is from another state, the plaintiff’s choice of forum should be given substantial deference as with a California resident and should not be disturbed unless the balance of private and public factors strongly favors the defendant. (See, e.g., *Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1465 & fn. 6 (*Morris*); *Ford Motor Co. v. Insurance Co. of N. Am.* (1995) 35 Cal.App.4th 604, 610-611; cf. *Lueck v. Sundstrand Corp.* (9th Cir. 2001) 236 F.3d 1137, 1143 [in interpreting forum non conveniens under federal common law, determining that when the plaintiff is a U.S. citizen, the defendant must satisfy heavy burden of proof].)

One court, however, has held that when a plaintiff is from another state, the plaintiff’s choice of forum should be given due deference but not a strong presumption. (*National Football League*, *supra*, 216, Cal.App.4th at p. 929.)

The decision to grant a forum non conveniens motion is discretionary and is accorded substantial deference on appeal. (*Century Indemnity*, *supra*, 58 Cal.App.4th at p. 411.)

b. Discussion

The Court finds in favor of Plaintiff.

i. Suitable Alternative Forum

Here, an alternative forum exists in Nevada for reasons advanced by Defendant’s moving papers, i.e., Teesnap being headquartered and operating in Nevada, alleged conduct occurring in Nevada, Defendants being amenable to jurisdiction in Nevada, Nevada’s recognition of the harms and claims alleged in this suit, and no applicable statute of limitations. (Motion, p. 2; see *Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 694 [defendants subject to jurisdiction in alternative forum, and no limitations bar]; *Animal Film*, *supra*, 193 Cal.App.4th at p. 472 [suitable alternative forum where action can be brought even if not necessarily won].)

ii. Balancing of Interests

However, a balancing of interests supports keeping litigation in California.

“The private interest facts are those that make trial and the enforceability of the ensuring judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest facts include avoidance of overburdening local courts with congested calendars, protecting the interest of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and the weighing of competing interests of California and the alternative jurisdiction in the litigation.” (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1463-1464.) The court

also considers whether the rights of the parties can best be determined by

the court of the other jurisdiction because of the nature of the subject matter and the stage to which the proceedings in the other court have already advanced. (Century Indemnity, supra, 58 Cal.App.4th at p. 412.)

Strictly for purposes of ruling on this motion alone, the Court rejects the argument that the parties' alleged arbitration agreement requires arbitration of any dispute in Nevada. This is a disputed issue before the Court, with a motion to compel arbitration set for hearing on September 29, 2026, and with Plaintiff's opposition papers arguing that the arbitration agreement is not enforceable as a matter of law. (See, e.g., Opposition, pp. 4-6.)

Moving to the balancing of factors, private interests—ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses—support keeping the litigation in California. The parties dispute whether material witnesses mostly reside in California or Nevada. However, a motion to quash by Defendants was denied by the Court on January 20, 2026, for which reason Defendant Teleo Capital is presently under jurisdiction of this Court and party-affiliated witnesses would need to be produced and could be produced remotely via videoconferencing. (Compare Motion, pp. 4-5, with Opposition, pp.8-10.) Moreover, in the online context, costs related to depositions should not appreciably differ. Separately, the Court finds merit in the opposition's argument that if the evidence at issue here is electronic, the electronic nature of discovery will minimize the burden on the parties, a position which the reply does not dispute, merely arguing that the position is neutral because it cuts both ways. (Opposition, p. 10; Reply, p. 5.)

As far as public factors—avoidance of overburdening local courts, protecting potential jurors from cases in which the local community has little concern, and the weighing of competing interests between possible forums—those factors also support keeping this action in California. The Complaint alleges that, among other things, a six-month employee was relocated to Nevada where she was subjected to sexual harassment for three months before being terminated following complaints relating to that harassment. (Complaint, ¶¶ 12, 14.) In turn the opposition clarifies that Plaintiff was a remote, California-based

employee for six months (April to October 2025), commuted from California to Nevada for 1.5 months (October to November 2024), and moved to Nevada in December 2024, where she lived when she was terminated in January 2025. (Opposition, Holmes Decl., ¶¶ 4-12.) This timeline is not disputed in the moving papers or reply and leads to the conclusion that, whatever competing interests California and Nevada may have in the litigation (see Motion, pp. 7-8), Californians have a strong interest in this action as a result of the inducement of employment of a California resident, who was for the most part employed remotely in California throughout her employment, and was forced to relocate to another state, where she was allegedly sexually harassed by Defendants.

Finally, because there is no active sister action in Nevada, there is no basis to determine that Nevada can at this time better resolve the present dispute because, for example, it is at a more advanced stage of proceedings, as contemplated in Century Indemnity.

Defendant's motion accordingly fails. (Century Indemnity, supra, 58 Cal.App.4th at p. 411 [An action brought by a California resident specifically may not be dismissed on grounds of forum non conveniens except in extraordinary circumstances].)

c. Conclusion

Defendant Teleo Capital, LLC's motion is DENIED.

Defendant Teleo Capital, LLC is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 14, 2026 _____

MARK C. KIM

Judge of the Superior Court